

Tentative Rulings for Department 403

Begin at the next page

(47)

Tentative Ruling

Re: ***Javier Tiscareno v. Volkswagen Group of America, Inc.***
Superior Court Case No. 24CECG02899

Hearing Date: July 29, 2026 (Dept. 403)

Motions: Plaintiff's Motion for Terminating and/or Evidentiary Sanctions

Tentative Ruling:

To deny plaintiff's Motion for Terminating and/or Evidentiary Sanctions

Explanation:

Plaintiff seeks terminating and/or evidentiary sanctions against defendant for noncompliance with its prior November 6, 2025 Court order.

On November 14, 2024, Defendant served its responses to Plaintiff's Request for Production of Documents, Set No. One ("RFP, Set No. One"). (Argent Decl., ¶ 3). On August 28, 2025, Plaintiff filed its Motion to Compel Further Responses and Documents to Plaintiff's Requests for Production of Documents, Set No. One ("Motion for Further Responses"). (*Id.*, ¶ 7.) On November 6, 2025, the Court granted Plaintiff's Motion for Further Responses and ordered further responses to requests Nos. 10, 16, 18, 19, 20, 33, and 58-66. The Court ordered verified supplemental responses within 10 days. (*Id.* ¶ 8, Ex. A.) Defendant served supplemental responses on November 12, 2025, and supplemental production on November 14 and November 18, 2025.

Plaintiff filed a motion to compel compliance, and the Court issued a tentative ruling on April 30, 2026. The April 30, 2026 tentative ruling states:

There is no statute that allows the court to issue an order to compel compliance with its previous order compelling further responses. In the context of a discovery dispute, the court's authority is limited to imposing additional sanctions, including evidence, issue, terminating and monetary sanctions. To the extent plaintiff seeks an order compelling defendant to comply with the court's prior order compelling defendant to provide further responses to the document requests, the motion is unsupported by any statutory authority and the court intends to deny it.

Further, to the extent plaintiff seeks an order imposing additional monetary sanctions for defendant's alleged failure to provide full and complete responses as previously ordered by the court, defendant has now served additional supplemental responses that comply with the court's order. (See Pratt decl., ¶ 5, and Ex. C to Pratt Decl.) Therefore,

further monetary sanctions are not appropriate here. As a result, the court intends to deny plaintiff's request for additional monetary sanctions against defendant, as defendant has now served supplemental responses as it was ordered to do.

(Argent Decl., ¶¶ 13-14, Ex. C, Emphasis added.)

Seeing how defendant has already complied with this Court's prior order dated November 6, 2025, and the Court already denied sanctions on this issue on April 30, 2026, the Court is inclined to once again deny both evidentiary and terminating sanctions.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 27, 2026.
(Judge's initials) (Date)